

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                 |                           |                                                       |                                               |                                 |
|--------------------------------------------------|-------------------------------------------------|---------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Whitney Beber                   | Team:<br>Squad #08                              | CCRB Case #:<br>201809347 | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                                 |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 11/08/2018 1:20 PM | Location of Incident:<br>In front of § 87(2)(b) | 18 Mo. SOL<br>12/23/2020  | Precinct:<br>52                                       |                                               |                                 |
| Date/Time CV Reported<br>Thu, 11/08/2018 1:57 PM | CV Reported At:<br>CCRB                         | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 11/08/2018 1:57 PM |                                               |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |

| Subject Officer(s)        | Shield | TaxID  | Command |
|---------------------------|--------|--------|---------|
| 1. POM Jose Deleonsanchez | 06308  | 958480 | 052 PCT |
| 2. POM Shawn Romero       | 12923  | 962063 | 052 PCT |
| 3. POM Pedro Lezcano      | 17113  | 959752 | 052 PCT |

| Officer(s)                 | Allegation                                                                                  | Investigator Recommendation |
|----------------------------|---------------------------------------------------------------------------------------------|-----------------------------|
| A . POM Pedro Lezcano      | Discourtesy: Police Officer Pedro Lezcano spoke discourteously to § 87(2)(b)                | A . Unsubstantiated         |
| B . POM Pedro Lezcano      | Abuse: Police Officer Pedro Lezcano stopped § 87(2)(b)                                      | B . Unsubstantiated         |
| C . POM Shawn Romero       | Abuse: Police Officer Shawn Romero stopped § 87(2)(b)                                       | C . Unsubstantiated         |
| D . POM Jose Deleonsanchez | Abuse: Police Officer Jose Deleonsanchez stopped § 87(2)(b)                                 | D . Unsubstantiated         |
| E . POM Pedro Lezcano      | Abuse: Police Officer Pedro Lezcano searched § 87(2)(b)                                     | E . Unsubstantiated         |
| F . POM Pedro Lezcano      | Abuse: Police Officer Pedro Lezcano frisked § 87(2)(b) s                                    | F . Unsubstantiated         |
| G . POM Pedro Lezcano      | Abuse: Police Officer Pedro Lezcano refused to provide his name to § 87(2)(b)               | G . Unsubstantiated         |
| H . POM Pedro Lezcano      | Abuse: Police Officer Pedro Lezcano refused to provide his shield number to § 87(2)(b)      | H . Unsubstantiated         |
| I . POM Pedro Lezcano      | Discourtesy: Police Officer Pedro Lezcano spoke discourteously to § 87(2)(b)                | I . Unsubstantiated         |
| J . POM Pedro Lezcano      | Abuse: Police Officer Pedro Lezcano failed to provide § 87(2)(b) with a business card.      | J . Substantiated           |
| K . POM Jose Deleonsanchez | Abuse: Police Officer Jose Deleonsanchez failed to provide § 87(2)(b) with a business card. | K . Substantiated           |
| L . POM Shawn Romero       | Abuse: Police Officer Shawn Romero failed to provide § 87(2)(b) with a business card.       | L . Substantiated           |
| § 87(4-b) § 87(2)(g)       |                                                                                             |                             |
|                            |                                                                                             |                             |
|                            |                                                                                             |                             |

| Officer(s)           | Allegation | Investigator Recommendation |
|----------------------|------------|-----------------------------|
| § 87(4-b) § 87(2)(g) | [REDACTED] | [REDACTED]                  |
| [REDACTED]           | [REDACTED] | [REDACTED]                  |
| [REDACTED]           | [REDACTED] | [REDACTED]                  |
| [REDACTED]           | [REDACTED] | [REDACTED]                  |
| [REDACTED]           | [REDACTED] | [REDACTED]                  |

## Case Summary

On November 8, 2018, § 87(2)(b) filed the following complaint with the Civilian Complaint Review Board over the phone. The CCRB received the complaint on November 8, 2018.

On November 8, 2018, at approximately 1:20 p.m. in front of § 87(2)(b) in the Bronx § 87(2)(b) was talking to “§ 87(2)(b),” when he noticed a marked police vehicle. One of the officers in the police vehicle beckoned to § 87(2)(b) with his finger for § 87(2)(b) to come to the patrol vehicle. Police Officer Pedro Lezcano of the 52<sup>nd</sup> Precinct exited the vehicle and approached § 87(2)(b) and allegedly said “I ain’t playing no fucking games,” (**Allegation A, Discourtesy- unsubstantiated**). As he approached § 87(2)(b) Police Officer Pedro Lezcano asked him what he had in the bag. Police Officer Pedro Lezcano, Police Officer Jose Deleonsanchez and Police Officer Shawn Romero, all of the 52<sup>nd</sup> Precinct, stopped § 87(2)(b) Police Officer Pedro Lezcano then allegedly entered § 87(2)(b)’s left jacket pocket and removed a black plastic bag before entering his right jacket pocket (**Allegations B, C, D and E, Abuse of Authority, unsubstantiated**). Police Officer Pedro Lezcano asked § 87(2)(b) what was in the bag again. § 87(2)(b) told him to open the bag. Police Officer Pedro Lezcano patted down the bag, returned the bag without opening it and returned to his vehicle (**Allegation F, Abuse of Authority, unsubstantiated**). § 87(2)(b) followed Police Officer Pedro Lezcano and allegedly asked for his name and badge number three times as Police Officer Pedro Lezcano’s back was turned. Police Officer Pedro Lezcano refused his requests (**Allegations G and H, Abuse of Authority- unsubstantiated**). Police Officer Pedro Lezcano allegedly told § 87(2)(b) to, “Get the fuck out of my face,” (**Allegation I, Discourtesy- unsubstantiated**). Police Officer Pedro Lezcano, Police Officer Jose Deleonsanchez, nor Police Officer Shawn Romero provided business cards to § 87(2)(b) (**Allegations J, K, and L, Abuse of Authority, substantiated**). § 87(4-b) § 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Video footage was obtained from § 87(2)(b) via email. The video was a recording of surveillance footage taken on November 8, 2018 (Board Review 01). The video footage did not capture any of the allegations.

## Findings and Recommendations

**Allegation (A) Discourtesy: Police Officer Pedro Lezcano spoke discourteously to § 87(2)(b)**

**Allegation B-Abuse of Authority: Police Officer Pedro Lezcano stopped § 87(2)(b)**

**Allegation C- Abuse of Authority: Police Officer Shawn Romero stopped § 87(2)(b)**

**Allegation D- Abuse of Authority: Police Officer Jose Deleonsanchez stopped § 87(2)(b)**

**Allegation E- Abuse of Authority: Police Officer Pedro Lezcano searched § 87(2)(b)**

**Allegation F-Abuse of Authority: Police Officer Pedro Lezcano frisked § 87(2)(b) s bag.**

As per § 87(2)(b)’s sworn statement, on November 8, 2018, at approximately 1:20 p.m. in front of § 87(2)(b) § 87(2)(b) was talking to an individual he knew as “§ 87(2)(b)” for at least three to four minutes when he noticed a marked police vehicle. Prior to speaking to § 87(2)(b) § 87(2)(b)

§ 87(2)(b) was talking to his building's manager, § 87(2)(b) who was also outside with an individual he knew as "§ 87(2)(b) § 87(2)(b) had not made any physical contact with § 87(2)(b) § 87(2)(b) or § 87(2)(b) No one else stopped to speak to § 87(2)(b) An officer in the vehicle, identified as PO Lezcano, beckoned him over to their car. However, § 87(2)(b) did not go to the car. PO Lezcano exited the vehicle and approached § 87(2)(b) and said "I ain't playing no fucking games." He then asked § 87(2)(b) what he had in the bag. As per § 87(2)(b) he had a black plastic bag which contained crackers, power straws (candy) and something from breakfast he had eaten in his left jacket pocket. PO Lezcano entered § 87(2)(b)'s left jacket pocket and removed the black plastic bag before entering his right jacket pocket. PO Lezcano never asked for his consent to search. PO Lezcano asked again what was in the bag. § 87(2)(b) told PO Lezcano to open the bag (since he had already removed it from his pocket). PO Lezcano returned the bag without opening it. PO Lezcano walked to his vehicle.

As per § 87(2)(b)'s telephone statement, on November 8, 2018, he was going in and out of the building located at § 87(2)(b) at approximately 1:20 p.m. During the time he was outside, he did not see anyone talk to or approach § 87(2)(b) § 87(2)(b) was standing alone and eating or drinking coffee. He observed a police vehicle drive until they reached § 87(2)(b). The officers rolled down their windows and spoke to § 87(2)(b) § 87(2)(b) responded and the officers exited their vehicle. The officers told § 87(2)(b) to get against the wall and asked him questions. He did not hear an officer say, "I ain't playing no fucking games." PO Lezcano asked § 87(2)(b) "What do you got?" or "What do you have in the bag?" He did not see whether § 87(2)(b) was searched. § 87(2)(b) stated that he heard cursing come from where the officers and § 87(2)(b) were but he did not know who was using the profanity.

The video footage § 87(2)(b) provided did not capture officers stopping or searching § 87(2)(b) or patting down his bag.

The investigation was unable to identify and contact "§ 87(2)(b) and "§ 87(2)(b)

As per PO Lezcano on November 8, 2018, at approximately 1:20 p.m. PO Deleonsanchez was on the roof of a corner building located at § 87(2)(b) (Board Review 02). PO Romero and PO Lezcano were sitting in a car at § 87(2)(b). PO Deleonsanchez told them that he observed a male with a black bag. He relayed that he observed two individuals approach that male, and that upon doing so, he saw the male reach into the bag and then exchange something with the individuals. PO Deleonsanchez never said what he believed to have been exchanged. Based on the narcotics prone location (of § 87(2)(b) and PO Deleonsanchez's observations, PO Lezcano believed that male was selling a controlled substance. At that point, PO Lezcano and PO Romero drove to § 87(2)(b) in front of the deli grocery. When they were in front of the deli grocery, PO Lezcano observed § 87(2)(b) on the corner with a black bag in his hand. PO Lezcano told § 87(2)(b) to "come here." PO Lezcano, PO Deleonsanchez, and PO Romero decided to stop § 87(2)(b) PO Lezcano approached § 87(2)(b) alone initially and asked his name, and what he had in the bag. PO Lezcano did not say, "I ain't playing no fucking games." As per PO Lezcano, § 87(2)(b) told him, "You want to look in the bag? Look in the bag." PO Lezcano was not sure if § 87(2)(b) handed him the bag or if he grabbed it. PO Lezcano never entered § 87(2)(b)'s jacket

pocket or removed a bag and he did not observe another officer do so. PO Lezcano felt the exterior of the bag and felt something squishy that he thought may have been marijuana.

PO Deleonsanchez's statement § 87(2)(g) (Board Review 03). § 87(2)(b) had an opaque black plastic bag and appeared to be conducting hand to hand drug transaction from the bag because he was reaching inside the bag and removing stuff from the bag and handing it to two other people. PO Deleonsanchez described that § 87(2)(b) was handing a small object via a handshake. PO Deleonsanchez could not clearly see or describe the object. PO Deleonsanchez did not see either individual to which § 87(2)(b) handed something, hand him anything in return. Their interactions lasted only seconds. When asked if there were any other relevant factors as to why he believed he witnessed a "hand to hand" drug transaction, PO Deleonsanchez stated that a lot of the people who get arrested for selling drugs, have a regular plastic shopping bag. PO Deleonsanchez did not hear an officer say, "I ain't playing no fucking games." As per PO Deleonsanchez, while PO Romero was moving the car, he and PO Lezcano approached § 87(2)(b) PO Lezcano asked § 87(2)(b) what was in the bag and § 87(2)(b) opened the bag very quickly and thrust the bag towards PO Lezcano. PO Lezcano patted the exterior of the bag down, looked inside the bag and then returned the bag to § 87(2)(b) No officer asked § 87(2)(b) to look inside the bag. PO Deleonsanchez did not see any officer reach inside of any of § 87(2)(b)'s jacket pockets and/or remove the plastic bag from his jacket pocket.

As per PO Romero, while driving down § 87(2)(b) in the Bronx conducting patrol, PO Deleonsanchez and PO Lezcano observed § 87(2)(b) holding a black plastic bag (Board Review 04). The officers told Mr. Romero that § 87(2)(b) kept reaching into a plastic bag and talking to several individuals. PO Romero remained in the car while PO Deleonsanchez and PO Lezcano continued to observe § 87(2)(b) for approximately ten minutes. PO Deleonsanchez went to the rooftop of a nearby building to observe him. PO Deleonsanchez and PO Lezcano returned to the car and told PO Romero that they believed based on their observations that he was selling narcotics. PO Romero did not remember if they told him they observed § 87(2)(b) make hand-to-hand transactions with any of the other individuals or hand them anything from the bag. PO Romero, PO Deleonsanchez and PO Lezcano pulled up next to § 87(2)(b) PO Deleonsanchez and PO Lezcano asked § 87(2)(b) what was in his bag. PO Deleonsanchez and PO Lezcano approached § 87(2)(b) PO Romero remained in the vehicle for two minutes before exiting. When PO Deleonsanchez and PO Lezcano approached § 87(2)(b) he told the officers that they could look into his bag which he was holding in his hand. PO Lezcano and PO Deleonsanchez looked inside § 87(2)(b)'s bag. No officer ever took the plastic bag out of his jacket pocket. They did not tell PO Romero what they saw in the bag. PO Romero never saw an officer search § 87(2)(b)

It is undisputed that PO Lezcano approached § 87(2)(b) and spoke to him. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) § 87(2)(b) It is therefore recommended that **Allegation A** be closed as **unsubstantiated**.

PO Lezcano did not document this stop in his memo book. None of the officers activated their body-worn cameras during this incident. A stop and frisk report was not prepared for this incident.

[REDACTED] § 87(2)(g) [REDACTED] § 87(2)(b)

[REDACTED] § 87(2)(b)

[REDACTED]

[REDACTED]

[REDACTED] § 87(2)(b)

[REDACTED] § 87(2)(b)

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] § 87(2)(b)

[REDACTED] § 87(2)(b)

[REDACTED]

[REDACTED] It is therefore recommended that **Allegations B, C, D,** and F be closed as **unsubstantiated.**

It is undisputed that § 87(2)(b) had a black plastic bag. § 87(2)(g)

|            |            |            |
|------------|------------|------------|
| § 87(2)(b) | § 87(2)(b) | § 87(2)(b) |
| § 87(2)(b) | § 87(2)(b) | (b)        |
|            |            |            |

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegation E** be closed as **unsubstantiated**.

**Allegation G- Abuse of Authority: Police Officer Pedro Lezcano refused to provide his name to § 87(2)(b)**

**Allegation H- Abuse of Authority: Police Officer Pedro Lezcano refused to provide his shield number to § 87(2)(b)**

**Allegation I- Discourtesy: Police Officer Pedro Lezcano spoke discourteously to § 87(2)(b)**

As per § 87(2)(b) as PO Lezcano was walking back to his car, he asked him for his name and shield number three times. PO Lezcano's back was to § 87(2)(b) when he made these requests. PO Lezcano refused to provide this information and once in the car leaned back into his seat and told § 87(2)(b) "Get the fuck out of my face."

As per § 87(2)(b) telephone statement, he never heard an officer say, “Get the fuck out of my face.” § 87(2)(b) heard cursing coming from where the officers and § 87(2)(b) were but he did not know who was using the profanity. He never heard § 87(2)(b) request any of the officer’s names or shield numbers. He never heard an officer provide their name or shield number to § 87(2)(b) and he never heard an officer refuse to provide their name or shield number.

As per PO Lezcano, § 87(2)(b) asked for his name and shield number twice. PO Lezcano provided it both times but he believed § 87(2)(b) did not hear him because § 87(2)(b) appeared distracted by PO Romero who approached § 87(2)(b). PO Lezcano returned to the vehicle and the officers started to drive away. As they were leaving, § 87(2)(b) took out his cell phone, started recording and asked for their names and shield numbers. PO Lezcano did not provide his name and shield number again. PO Lezcano did not tell § 87(2)(b) “Get the fuck out of my face.” PO Lezcano never used profanity when speaking to § 87(2)(b).

PO Deleonsanchez did not hear § 87(2)(b) ask for PO Lezcano’s name and shield number. He did not hear PO Lezcano refuse to provide his name or shield number. PO Deleonsanchez did not hear an officer tell § 87(2)(b) “Get the fuck out of my face.”

PO Romero did not remember whether § 87(2)(b) ever requested any officer’s name or shield number. He did not remember that any officer told § 87(2)(b) “Get the fuck out of my face.”

It is undisputed between PO Lezcano and § 87(2)(b) that he requested PO Lezcano’s name and shield number. It is also undisputed that PO Lezcano did not respond to one of § 87(2)(b)’s requests for his name and shield number. § 87(2)(g)

§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
It is therefore recommended that **Allegations G and H** be closed as **unsubstantiated**.

§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)

§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
§ 87(2)(g) § 87(2)(b) § 87(2)(b)  
It is therefore recommended that **Allegation I** be closed as **unsubstantiated**.

**Allegation J- Abuse of Authority: Police Officer Pedro Lezcano failed to provide a business card.**

**Allegation K- Abuse of Authority: Police Officer Jose Deleonsanchez failed to provide a business card.**

**Allegation L- Abuse of Authority: Police Officer Shawn Romero failed to provide a business card.**

It is undisputed that PO Lezcano, PO Deleonsanchez and PO Romero stopped § 87(2)(b) and that he was not arrested or summonsed as a result of this incident. PO Lezcano did not provide § 87(2)(b) with a business card because he did not have any prefilled or blank business cards with him on the date of this incident.

PO Romero did not remember if any officer provided their business cards to § 87(2)(b)

PO Deleonsanchez did not provide a business card and stated that this incident did not constitute a stop.

Patrol Guide Section 203-09 requires officers to offer a business card during a level II or Level III street encounter when a summons or arrest is not made (Board Review 06). Patrol Guide Procedure 203-09 further states that, should an officer's supply of business cards be depleted, the officer must allow the member of the public ample time to write down identification information

It is undisputed that § 87(2)(b) was stopped and that no summons or arrest was made. It is also undisputed that § 87(2)(b) was not provided with a business card.

§ 87(2)(g)  
§ 87(2)(b)  
§ 87(2)(b)  
it is recommended that **Allegations I, J, and K** be closed as **substantiated**.

§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)

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§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)

§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)  
§ 87(2)(g), § 87(4-b)



§ 87(2)(g), § 87(4-b)

#### **Civilian and Officer CCRB Histories**

- § 87(2)(b) has been party to 2 CCRB complaint and has been named as a victim in 20 allegations (Board Review 09).
  - § 87(2)(b)
- PO Shawn Romero has been a member of service for two years and has been the subject of two complaints and five allegations, none of which were substantiated. § 87(2)(g)
- PO Deleonsanchez has been a member of service for three years and has been a subject of four complaints and ten allegations, one of which was substantiated.
  - Case number 201708315 involved substantiated allegations of a frisk against PO Deleonsanchez. The board recommended command discipline B and the NYPD has not yet imposed discipline.
  - § 87(2)(g)

#### **Mediation, Civil and Criminal Histories**

- This complaint was not suitable for mediation.

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad No.: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date